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Review

Between Rhetoric and Necessity: Labour Migration Governance in Poland and Hungary

Izabela Florczak [1] and Bernadett Solymosi-Szekeres [2,*]

[1] Department of Labour Law, Social Security and Social Policy, Faculty of Law and Administration, University of Lodz, 90-136 Łódź, Poland; iflorczak@wpia.uni.lodz.pl
[2] Department of Agricultural and Labour Law, Faculty of Law, University of Miskolc, 3515 Miskolc, Hungary
* Correspondence: bernadett.solymosi-szekeres@uni-miskolc.hu

Abstract

Over the past decade, Central and Eastern Europe has emerged as a key region shaping contemporary labour migration patterns within the European Union. Poland and Hungary occupy a particularly distinctive position within this landscape, combining increasingly restrictive political narratives on migration particularly regarding asylum and irregular migration, with a growing reliance on third-country workers. This article offers a comparative analysis of labour migration governance in Poland and Hungary, focusing on the interaction between regulatory frameworks, institutional practices and public discourse. Drawing on legal acts, policy documents, statistical data and academic literature, the study examines how both countries respond to demographic decline, labour shortages and economic competitiveness while simultaneously articulating security-driven or migration-sceptical narratives. The analysis demonstrates that, despite notable differences in political communication and public justification, Poland and Hungary increasingly converge in their practical regulatory solutions, expanding access to labour markets for third-country nationals through selective and sector-specific admission mechanisms. This article argues that both states represent variants of a shared functional model of labour migration governance, characterised by a persistent policy–rhetoric gap. While migration control remains central to political messaging, economic imperatives drive a gradual but consistent opening of labour markets. By adopting a focused two-country comparison, this article highlights broader regional patterns of regulatory adaptation and narrative tension that are likely to shape the future of labour migration governance in Central and Eastern Europe.

Keywords: labour migration; Poland; Hungary; labour market

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1. Introduction

Over the past decade, Central and Eastern Europe has become one of the key regions shaping contemporary migration flows into the European Union, while its labour markets have turned into laboratories of rapid regulatory and narrative transformation. Among these states, Poland (European Commission 2018; Okólski 2021) and Hungary (Lados and Brucker 2023) occupy a particularly distinctive position. Although demographic ageing and labour shortages affect most EU Member States, the configuration of these pressures in Poland and Hungary differs in important respects. Both countries combine adverse demographic trends with a relatively recent transition from countries of emigration to countries of immigration (Okólski 2012; Lados and Brucker 2023). At the same time, they continue to experience outward mobility of their own citizens to other EU Member States,

particularly in the Hungarian case, where post-accession emigration has had a lasting impact on domestic labour supply (Lados and Brucker 2023; T. Nagy et al. 2025). This dual dynamic of simultaneous outflow and inflow intensifies labour market pressures and reshapes the logic of migration governance. The paradoxical coexistence of restrictive political rhetoric with pragmatic economic openness, within this context, makes Poland and Hungary a compelling and analytically coherent case study for examining contemporary governance of labour migration.

While the Western Balkans have historically played an important role in shaping broader regional mobility patterns affecting the European Union, including long-term labour outflows and transit dynamics, the analytical focus of this article is confined to EU Member States in Central and Eastern Europe, specifically Poland and Hungary, whose institutional position within the EU legal framework makes them particularly suitable for comparative analysis.

Migration policies increasingly highlight a growing gap between rhetoric and policy (the policy–rhetoric gap). This gap is operationally defined as a measurable divergence between publicly articulated governmental narratives on migration and the substantive regulatory measures adopted to facilitate the admission and employment of third-country workers. Both states simultaneously achieve the following:

(1) Strengthen security-driven narratives and discourses of labour market protection;
(2) Expand admission channels for non-EU workers;
(3) Grapple with the "hybridisation" of migration, in which the boundaries between labour mobility, international protection, and educational migration are becoming increasingly blurred.

This combination of factors means that a Poland–Hungary comparative analysis helps capture shared regional mechanisms while uncovering divergences rooted in political, institutional, and socio-economic specificities. In contrast to broad comparative studies involving multiple EU member states, a focused two-country approach allows for a deeper examination of regulatory instruments, enforcement practices, the role of political actors, and the dynamics of public narratives.

The purpose of this article is to present a comparative analysis of regulatory frameworks governing the employment of third-country nationals in Poland and Hungary, with particular attention given to their institutional context, narrative environment, and economic drivers. The study draws on legal acts, national policy documents, statistical data, secondary academic literature, and post-2015 discourses, when migration became one of the most polarising issues in European political debate.

This article argues that Poland and Hungary represent two variants of a shared functional logic of labour migration governance: a policy framework that, regardless of political rhetoric, tends toward selective openness of the labour market for third-country workers. This article engages with the concept of the "migration state" and recent debates on hybrid migration regimes. Rather than treating Poland and Hungary merely as empirical illustrations, it uses the comparison to refine this theoretical framework in the context of post-socialist transformation, where labour migration is increasingly governed through selective and instrumental openness. Differences between the two states are most pronounced at the level of political communication and public justification, whereas practical regulatory mechanisms reveal increasing functional convergence.

2. Materials and Methods

The research design of this study is based on a socio-legal methodology, which involves the use of doctrinal research techniques in combination with findings from the social sciences, policy analysis and qualitative review of secondary social science literature in

order to contextualise legal developments within their wider economic context. The methodological approach is institutional and normative in nature. Thus, the research is essentially descriptive and analytical in nature.

The first aim of the research is to provide a description of the relevant legislative frameworks and policy developments, and the second aim is to critically analyse these developments in light of underlying economic changes. This approach will enable the research to move beyond a formalistic analysis of migration and labour law, and instead focus on the interaction between legal norms and structural changes in the region. The analysis will focus on recent developments in migration regulation and policy in certain Central and Eastern European countries, and their implications for labour markets and employment relations. This way the analytical dimension of the research is not merely descriptive but seeks to provide an institutional and political economy-oriented interpretation of legal developments. The descriptive part of this study seeks to identify the evolution of national systems of law in the realm of labour migration, while the analytical part attempts to examine the underlying rationales, presuppositions, and socio-economic consequences of these choices in law. The aim of this study is, therefore, to examine not only the evolution of law in this field but also its functional significance within the specific domain of labour migration governance, particularly in the context of evolving economic strategies and models of economic governance. This study adopts a comparative methodology, focusing on Poland and Hungary as analytically pertinent case studies. The selection of these countries is grounded in both structural and contextual considerations. First, both are post-socialist states that underwent rapid economic transformation and institutional restructuring following 1989, culminating in integration into the European Union. These processes reshaped their labour markets, regulatory capacities, and mobility regimes.

Second, both countries were historically characterised as labour-exporting states, marked by sustained emigration, particularly toward Western Europe after EU accession. This emigration experience significantly influenced domestic labour market structures and policy perceptions of mobility.

Over the last decade, however, both Poland and Hungary have undergone a gradual transition toward becoming labour destination countries. Faced with demographic decline, labour shortages, and economic competitiveness pressures, they have increasingly relied on the recruitment of third-country nationals for employment within their own labour markets. This change from predominantly outward to dual-mobility regimes provides a critical lens for analysing how migration governance evolves in states that must simultaneously manage emigration legacies and new immigration demands. Thus, the temporal scope of the analysis covers mainly the period between 2015 and 2024.

This study relies on a structured selection of sources. Primary sources include national migration and labour legislation, amendments, governmental strategies, and official policy communications. At the EU level, relevant directives, communications, and statistical datasets are also considered. Secondary sources consist of peer-reviewed academic literature in migration law, labour law, and political economy, as well as reports by international organisations and research institutes. Sources were selected based on relevance to third-country labour migration governance, recency (with particular attention to developments in the past decade), and their contribution to understanding regulatory rationales and institutional practice.

The limitation of the analytical research should also be mentioned. The analytical component of this study focuses specifically on the legal instruments governing the admission and employment of third-country nationals, including work permit regimes, labour market access conditions, employer-driven recruitment mechanisms, and sector-specific labour migration schemes. Particular attention is paid to legislative amendments adopted after 2015

that were intended to respond to labour shortages, demographic pressures, and changing economic policy priorities. The research relies primarily on qualitative legal and policy analysis of legislative texts, governmental strategies, and EU legal instruments. Certain limitations should also be acknowledged: the study concentrates mainly on formal legal frameworks and policy documents rather than administrative practice or workplace-level enforcement, the comparative scope is limited to two analytically selected case studies, and the temporal focus on the period between 2015 and 2024 means that earlier historical developments and the most recent regulatory changes fall outside the scope of the present analysis.

3. Results

This section presents the results of the comparative analysis of labour migration governance in Poland and Hungary. The findings are organised thematically and reflect the interaction between demographic and economic pressures, regulatory frameworks, and political narratives shaping access to labour markets for third-country nationals. Rather than reporting experimental outcomes in a narrow empirical sense, the Results Section synthesises legal analysis, policy developments, and statistical trends to identify functional patterns and points of convergence and divergence between the two national cases.

The section proceeds from a broader European context to country-specific analyses. It first outlines the demographic and economic drivers of labour migration in the European Union (Section 3.1), which form the structural background for national policy choices. It then explains the rationale for the Poland–Hungary comparison (Section 3.2), before turning to an in-depth examination of the Hungarian (Section 3.3) and Polish (Section 3.4) cases. Together, these results provide the empirical and analytical basis for the comparative discussion developed in the subsequent section.

3.1. Demographic and Economic Drivers of Labour Migration in the European Union

European labour markets are undergoing profound structural transformations driven by demographic decline, population ageing, and persistent labour shortages. As birth rates fall and the share of older persons increases, the economic and institutional pressures on EU Member States intensify. These demographic dynamics affect welfare systems, public budgets, and the long-term stability of national economies, making the shrinking workforce one of the most critical challenges for European employment policy (European Commission n.d.). In this context, the European Union has increasingly emphasised the development and management of legal labour migration channels as part of its broader migration policy framework, positioning legal entry of third-country workers as a tool to respond to labour market needs and demographic pressures. The scale of the challenge is well documented. Labour shortages have been steadily worsening across Member States, with the number of unfilled vacancies doubling between 2012 and 2022. At the same time, the EU's working-age population is projected to decline further—from 265 million in 2022 to 258 million by 2030 (European Commission 2023). Against this background, the EU promotes labour migration as a tool to address shortages in sectors such as construction, health care, agriculture, manufacturing, and transport.

While demographic decline constitutes a key structural driver of labour migration across the European Union, economic and industrial strategies play an equally significant role, particularly in Central and Eastern Europe. In Poland, large-scale labour migration from Ukraine began to intensify already in the mid-2010s, at a time when labour demand was driven not only by demographic pressures but also by sustained economic growth and sectoral expansion. Similarly, in Hungary, the recruitment of third-country nationals has been closely linked to foreign direct investment (FDI), reindustrialisation policies, and the

expansion of manufacturing sectors, particularly in the automotive and battery industries. In these contexts, labour migration functions not merely as a response to population ageing but as an instrument of industrial competitiveness and economic governance.

EU law offers a framework for the admission of third-country workers, while leaving substantial discretion to Member States in shaping their national labour migration regimes. Importantly, the definition of a "third-country national" is uniform across EU law: it includes anyone who does not possess EU citizenship and does not enjoy free-movement rights under Article 2(5) of Regulation (EU) 2016/399.

The EU's migration architecture is inherently selective. While highly skilled mobility is facilitated through instruments such as the Blue Card Directive, broader reforms increasingly aim to streamline admission procedures for all categories of workers. The most recent example is Directive (EU) 2024/1233, which introduces far more efficient rules for combined work-and-residence permits, including shorter procedures and simplified job-change notifications to improve the protection and autonomy of migrant workers. These developments illustrate a clear regulatory trend: the European Union aims to make entry for third-country workers administratively easier, more transparent, and more rights-protective (Loi 2019).

However, labour migration is deeply intertwined with other forms of mobility—educational, humanitarian, and family-related—which makes migration governance inherently complex. This multidimensionality means that labour migration can simultaneously serve as a solution to economic challenges and a source of political contestation. Historically, national governments have focused predominantly on control mechanisms, border management, and restriction of inflows, reflecting a security-driven approach to migration (Loi 2019). In the early 2000s, significant disparities also emerged in labour market participation: third-country nationals residing in the EU showed a labour force participation rate of 62% and an employment rate of 52%, approximately ten percentage points below EU citizens. These early gaps continue to shape Member States' approaches to integration and labour market access (European Foundation for the Improvement of Living and Working Conditions 2007).

Notably, integration policies vary widely among Member States, reflecting differences in political traditions, administrative capacities, and the historical intensity of migration flows. Because employment policy remains primarily within national competence, the EU's overarching objective of attracting workers is often conditioned by diverging national narratives—some growth-oriented, others explicitly migration-sceptical. Central and Eastern Europe, including Hungary, belongs to the group of countries where sceptical or restrictive narratives have been particularly visible. The historical context contributes to this pattern: after the fall of the Iron Curtain, migration flows intensified mainly towards Western Europe, while CEE Member States remained, for many years, primarily countries of emigration. As a result, their foreign-born population remains comparatively small (Hárs 2010; Eurostat 2026).

Within the Visegrád Group, Hungary receives the lowest proportion of third-country workers (2.6% of the workers comprising foreign nationals), compared with Slovakia (3.8%), Poland (6.4%), and the Czech Republic (17%) (Government of Hungary n.d.; Schachtschneider 2025; Németh 2024). The Hungarian government's public narrative generally opposes immigration, which is visible in increasingly stringent regulations, such as stricter quotas and licencing requirements introduced in 2025 (Orbán 2023). Yet economic realities tell a different story. Despite restrictive rhetoric, labour shortages and demographic pressures are pushing Hungary, like the broader CEE region, toward greater reliance on third-country workers. The region is moving from being primarily a source of labour mobility to becoming an increasingly important destination.

The Eastern European region is currently increasingly combining roles as both labour-sending and labour-receiving states. This process raises a broader question: is labour migration policy, and the narrative that accompanies it, undergoing a structural transformation in this previously more isolated region? (Irwin-Hunt 2024).

This, in turn, leads to several fundamental questions:

- Is labour migration policy in Poland and Hungary genuinely changing, or merely adjusting instrumentally to labour market pressures?
- How do regulatory frameworks and public narratives evolve when economic needs collide with restrictive or security-driven political messaging?
- What does this tension imply for the future of labour markets in Poland, Hungary, and the wider CEE region?

These issues form a crucial foundation for the comparative analysis that follows.

3.2. Rationale for Poland–Hungary Comparative Perspective

A comparison between Poland and Hungary provides a particularly useful analytical perspective for examining contemporary models of labour migration governance in Central and Eastern Europe. The countries of the CEE region share a number of structural characteristics, including a post-socialist institutional legacy, adverse demographic trends, and persistent labour shortages. In this frame, Poland and Hungary represent two analytically significant variants of how similar challenges are addressed through different regulatory instruments and political narratives.

First, both countries operate within a shared context of post-1989 systemic transformation. The transition from centrally planned to market-based economies profoundly reshaped their labour markets, social security systems, and mobility patterns (Okólski 2012; Melegh 2016). For a considerable period following accession to the European Union, both Poland and Hungary functioned primarily as countries of labour emigration, supplying workers to the economies of Western Europe. This experience continues to influence domestic political debates, societal perceptions of migration, and the design of labour market regulation. The relatively recent transition towards becoming countries of immigration means that labour migration governance in both states has developed incrementally, often in a reactive manner, rather than as part of a long-term, coherent migration strategy (Okólski 2012; White et al. 2018).

Second, Poland and Hungary are particularly well suited for comparative analysis due to the central role of political narratives in shaping migration governance. In both countries, migration has become a highly politicised issue, closely linked to discourses of security, sovereignty, and labour market protection. Hungary exemplifies a model in which restrictive and securitised migration narratives form a core element of governmental communication (Kováts and Sik 2016; Aneta Konarska 2022). Poland, while employing a less overtly confrontational language, has likewise increasingly invoked notions of control, security, and selective access to the labour market (Florczak 2022a, 2025b). In both cases, however, these narratives coexist with regulatory practices that in fact enable substantial access of third-country nationals to employment. The divergence between political declarations and functional regulatory openness constitutes one of the key shared features of both systems.

Third, despite differences in scale, Poland and Hungary exhibit important structural similarities in the functioning of their labour markets. Both economies face persistent labour shortages driven by population ageing, outward migration of citizens, and sector-specific demand in areas such as industry, construction, agriculture, logistics, and transport (European Commission 2018; OECD 2025). In response, both states have developed selective mechanisms for granting labour market access to third-country nationals, typically char-

acterised by temporariness, sectoral targeting, and limited integration prospects. Whereas Hungary has favoured centralised solutions based on quotas and formal guest-worker programmes, Poland has historically relied on flexible, decentralised, and administratively simplified instruments (Florczak 2018, 2022a).

Taken together, these shared historical trajectories, narrative tensions, and structural labour market conditions justify a focused comparison between Poland and Hungary. Such an approach makes it possible to move beyond treating Central and Eastern Europe as a homogeneous region and instead to capture different variants of a functionally convergent model of labour migration governance. At the same time, the comparison enables the identification of mechanisms common to the region as well as divergences rooted in national political, institutional, and discursive configurations.

3.3. The Hungarian Case

Labour mobility has become a defining feature of European labour markets, particularly in Central and Eastern Europe. Recent research on Hungarian workers employed abroad confirms the continued significance of East–West migration within the European Union, highlighting how post-socialist mobility patterns have evolved into a structural characteristic rather than a transitional phenomenon (T. Nagy et al. 2025). Hungary represents an analytically relevant case within this regional transformation because its migration governance has evolved in a way that combines restrictive political narratives with selective economic openness. Since the democratic transition in 1989, Hungarian immigration policies have undergone significant institutional change (Kováts and Sik 2016), while the country has gradually developed a dual migration profile, simultaneously functioning as a country of emigration and immigration. This configuration makes Hungary a useful case for examining how labour migration governance operates in a post-socialist state facing labour shortages while maintaining a politically restrictive approach to immigration. In comparative perspective with Poland, the Hungarian model illustrates a more centralised and politically framed approach to regulating the employment of third-country nationals, in which migration law functions as an instrument of labour market governance under conditions of strong political control.

3.3.1. From Labour Export to Dual Migration Profile

For much of the post-socialist period, Hungary was primarily characterised by high unemployment and outward labour mobility, alongside the experienced low fertility rates (Melegh 2016). Following accession to the European Union, the gradual removal of transitional labour market restrictions accelerated the emigration of Hungarian workers, predominantly toward higher-wage Western European countries (Lados and Brucker 2023, p. 41; Koós and Zsibók 2021). This trend was indirectly supported by EU policies aimed at addressing labour shortages in core economies through increased intra-EU mobility. At the same time, structural changes within Hungary altered domestic labour market conditions. From approximately 2013 onwards, unemployment declined steadily, and by the second half of the 2010s labour shortages became evident across multiple sectors. According to data from the Hungarian Central Statistical Office, fewer than 80,000 vacancies were recorded in the second quarter of 2023. These developments coincided with an explicit reindustrialisation strategy centred on manufacturing, particularly in the automotive and battery sectors (Lados and Brucker 2023, p. 49). As a result, Hungary has transitioned from a labour-exporting country into a hybrid system combining outward mobility with inward labour migration. This transformation mirrors regional trends identified in Central and Eastern Europe more broadly, where countries have increasingly acquired a dual role as both sources and destinations of labour (T. Nagy et al. 2025). As Lleshaj (2013) argues, the

geopolitical repositioning of the region—from EU periphery to guardian of the Union's eastern border—has further intensified these dynamics.

Over the past decade, Hungary has gradually emerged as a destination for non-ethnic labour migration. By 2021, approximately 333,000 foreign nationals aged 15–50 held residence permits in Hungary, originating from a diverse range of neighbouring states, EU Member States, and increasingly from Asia and Africa (Lados and Brucker 2023, p. 56). While regional migrants from Romania and Slovakia remain significant, the composition of third-country labour has changed markedly. Earlier patterns, dominated by Ukrainian (Meszmann and Fedyuk 2019), Chinese, and Serbian workers, have given way to growing inflows from the Philippines, Vietnam, and Central Asia (European Migration Network 2013). The expansion of Filipino employment has been particularly rapid: from around 1100 workers in 2022 to nearly 6300 in 2023 (Portfolio 2024). By 2024, the number of guest workers employed in Hungary had reached approximately 120,000.

Despite these increases, Hungary continues to employ a relatively small proportion of foreign workers. In 2024, foreign nationals accounted for approximately 2.6% of employment in Hungary, compared to 3.8% in Slovakia, 6.4% in Poland, and 17% in the Czech Republic (Sipos 2024). These comparative figures play a central role in domestic political discourse, reinforcing the claim that Hungary maintains a restrictive approach to labour migration.

3.3.2. Regulatory Responses and Political Narratives on Labour Shortages

It can generally be stated that Hungary's migration policy is highly centralised, with limited space for local or civil society engagement (Aneta Konarska 2022). Hungary's regulatory response to labour shortages has been shaped by a strong emphasis on control and conditionality. In 2023, the government introduced legislation regulating the employment of guest workers, formally aligning domestic rules with EU law while reaffirming political opposition to large-scale immigration from outside Europe. The core principle of the new framework is labour market priority: employers must first demonstrate the unavailability of Hungarian and EU workers before recruiting third-country nationals (Lados and Brucker 2023, p. 49). Guest workers are admitted for a limited duration and are required to leave Hungary upon the expiry of their permits. On the basis of labour market forecasts, the government estimated that no more than 62,000 third-country nationals would be eligible for employment under this regime in 2024 (Lados and Brucker 2023, p. 50). A distinctive feature of the Hungarian system is its reliance on labour market quotas—a regulatory technique that Hungary has used since at least 2013, at a time when only a few EU Member States applied similar mechanisms (European Migration Network 2013).

The regulatory tightening introduced in 2023 and 2024 was accompanied by a strong political and media narrative emphasising the risks associated with employing foreign workers, particularly those from Asia and Africa (Lados and Brucker 2023, p. 61; Aneta Konarska 2022). This rhetoric, based on the centralised migration policy, was highly politicised and anti-immigration (introducing a state of crisis due to mass migration at the Hungarian–Serbian border), limiting alternative perspectives (Czyż 2023; Farkas 2022). Government officials repeatedly stressed that third-country workers would only be admitted where no domestic or EU labour was available (Sipos 2024). In early 2025, this narrative appeared to align with empirical developments. Due to an industrial slowdown, reduced investment, and stricter administrative procedures, the inflow of third-country workers declined by approximately 30% compared to the previous half-year (Professional Publishing Hungary 2025). New legislation entering into force in January 2025 significantly restricted access to employment-related residence permits. Under Government Decree 450/2024 (XII. 23.), eligibility for employment and guest worker permits was initially limited to

nationals of Georgia and Armenia, and later expanded to include the Philippines (Lengyel 2024; GyártásTrend 2025). Numerical ceilings were also reduced. For 2025, the maximum number of employment-related and guest worker residence permits was set at 35,000, down from 65,000 the previous year (GyártásTrend 2025). Importantly, this ceiling is linked to the average number of vacant positions measured in the preceding year, reinforcing the functional connection between labour demand and migration governance (Jónás 2025).

3.3.3. Selective Openness and Economic Dependence

The Hungarian system shows a selective mechanism with territorial differentiation, and ethnic preferences in labour market access, driven by economic necessity (Kóti 2019). Despite the appearance of closure, available data suggest continued reliance on third-country labour. In 2023, the number of foreigners residing in Hungary for employment purposes increased by more than 11,700, driven primarily by workers from the Philippines, India, Vietnam, and Central Asia. Although these workers constitute a small proportion of the total workforce, they are heavily concentrated in strategic sectors, particularly automotive and battery manufacturing (Orosz 2025; Bodor 2024). Filipino workers occupy a particularly prominent position within this system. As the second-largest group of guest workers after Ukrainians, their continued admission has been widely welcomed by employers (Stubnya 2025). Moreover, the possibility of concluding additional bilateral agreements suggests that the list of eligible countries may expand further in response to economic pressures. This pattern can be understood as selective liberalisation: an officially restrictive migration regime that nonetheless facilitates targeted labour importation in sectors deemed economically essential. OECD data supports this interpretation, showing that Hungary issued approximately 67,000 new non-EU residence permits in 2024, over 72% of which were labour-related (OECD 2025). This process reflects the country's need for additional labour due to its FDI-based growth model and integration into global value chains (Bradford and Cullen 2025).

This process can be considered the guest worker paradox, because despite anti-migrant rhetoric, Hungary has introduced guestworker programmes for third-country nationals to address labour shortages, revealing a tension between ideological discourse and economic imperatives (Futák-Campbell 2022). The arrival of over 60,000 Ukrainian refugees and the need for 500,000 new workers highlight this paradox (Bradford and Cullen 2025). The guest worker programmes might provide a partial means of navigating the paradoxes of the "immigration state," as they allow a limited number of temporary migrants to support key industries without entailing long-term commitments related to citizenship rights (Bradford and Cullen 2025).

To sum up, Hungary's contemporary approach to labour migration reflects broader tensions within Central and Eastern Europe. Comparative research highlights the often complex and hostile sociopolitical environment for migrant integration in the region (Arendas et al. 2023), while economic analyses point to persistent labour shortages and demographic decline. According to government estimates, Hungary will require an additional 500,000 workers by 2030 to achieve its industrial development objectives (Irwin-Hunt 2024). This is not avoidable as the need for labour is further exacerbated by Hungary's integration into global value chains and its reliance on foreign direct investment (FDI) for economic growth (Bradford and Cullen 2025). In this context, migration quotas function less as absolute barriers than as politically communicable ceilings. They enable governments to signal control while retaining flexibility to respond to labour market needs. The Hungarian case thus illustrates how migration law increasingly operates as an instrument of labour market governance rather than border control alone. And this governance is becoming more complex (Bradford and Cullen 2025). Agreeing with Bradford and Cullen (2025),

Hungary can be seen as facing a paradoxical tension between national economic priorities and internal political as well as public expectations to safeguard national identity. For social science research, this raises important questions about the interaction between economic necessity, political discourse, and the lived experiences of migrant workers—questions that merit further empirical and comparative investigation. This is specifically important, as a substantial body of scholarship has examined the role and function of migration states in Western liberal economies, and more recent research has begun to explore "outward" migration states in the Global South and beyond. In contrast, relatively little attention has been paid to the applicability of the migration state concept in post-communist contexts, such as Hungary (Bradford and Cullen 2025). However, these processes need to be studied, as the complex operations of transnational temporary work agencies can create legal uncertainties and foster unfree labour relations (Novitz and Andrijasevic 2020).

Taken together, these developments illustrate a model of labour migration governance characterised by strong political centralisation, the use of quantitative ceilings and quotas, and a highly visible political narrative emphasising control over immigration. At the same time, economic pressures connected to labour shortages and the country's FDI-driven industrial strategy generate a continued demand for third-country workers. This configuration provides an important point of comparison with the Polish case. While both countries face similar demographic pressures and labour market constraints, Hungary relies more heavily on centralised regulatory instruments and politically framed restrictions, whereas the Polish model has historically evolved through more flexible and demand-driven labour market mechanisms. The Hungarian case therefore highlights one possible institutional response to the dual migration profile observed in Central and Eastern Europe.

3.4. The Polish Case

Poland represents a distinctive configuration of labour migration governance in Central and Eastern Europe, particularly when compared with the Hungarian case discussed above. While both countries share a post-socialist legacy, a prolonged history of labour emigration, and similar demographic pressures, Poland's trajectory differs markedly in terms of the scale, speed, and institutional organisation of labour immigration. In particular, Poland has become one of the largest recipients of first residence permits issued for work purposes among EU Member States (Eurostat 2025). As a result, migrant labour has become structurally embedded in several sectors of the Polish economy. This makes the Polish case a useful counterpoint to the Hungarian model. Whereas Hungary relies more heavily on centralised regulatory instruments and politically articulated migration control, Poland has historically governed labour migration through flexible labour market mechanisms, simplified employment procedures, and employer-driven recruitment practices. Analysing these two cases side by side therefore provides an opportunity to examine how similar structural pressures—such as labour shortages, demographic decline, and continued outward mobility—can produce different institutional responses in labour migration governance.

3.4.1. From a Country of Emigration to a Large-Scale Immigration State

For most of the post-socialist transformation period, Poland was predominantly perceived as a country of emigration. The scale and persistence of labour emigration—particularly following accession to the European Union in 2004—shaped a dominant image of Poland as a state "exporting labour" to the more developed economies of Western Europe (Komornicki et al. 2025). The mobility of Polish workers acquired a structural and long-term nature, and its consequences, both demographic and economic, continued to affect the domestic labour market for many years after accession (Zieniuk-Cupryn 2016).

This model, however, underwent a significant shift observable between 2013 and 2023. From around 2013–2014 onwards, Poland gradually began to shift from the status of a net emigration country to one of the European Union's major destination states for labour migration (Okólski 2012). This transition was driven by a combination of demand- and supply-side factors. These included rapid economic growth, a sustained decline in unemployment, deepening labour shortages, and adverse demographic trends—most notably population ageing and a shrinking working-age population (White et al. 2018; Fihel et al. 2023). A key structural catalyst of this shift was the sustained inflow of Ukrainian nationals following the 2014 geopolitical crisis. Initially characterised by circular and short-term labour mobility, this movement progressively evolved into more stable patterns of employment and residence (Urząd do Spraw Cudzoziemców 2014–2025). The process accelerated sharply after 2022, when Russia's full-scale war against Ukraine generated an unprecedented scale of displacement and labour market incorporation, consolidating Poland's transformation into a dual migration regime combining continued outward mobility of its own citizens with large-scale inward labour migration.

In contrast to Hungary, Poland's migration transition was both large-scale and relatively rapid. Within less than a decade, Poland became one of the European Union's largest recipients of third-country workers, both in terms of the number of work-related permits issued and the overall scale of foreign employment (Eurostat 2025). A particularly significant role was played by migrants from Eastern Europe—especially from Ukraine and Belarus. Their mobility initially took the form of short-term, seasonal, and circular migration, but gradually evolved into more stable and long-term patterns of residence and employment (Górny and Śleszyński 2019; Wysocka 2021).

This shift from emigration to immigration did not, however, entail the disappearance of outward mobility. Poland, similarly to Hungary, has developed a dual migration profile, combining the continued emigration of its own citizens with a growing scale of labour immigration (Okólski 2012). This duality constitutes an important backdrop for contemporary migration policy, as it compels the state to respond simultaneously to the outflow of human capital and to the increasing demand for foreign labour in key sectors of the economy.

3.4.2. The Scale and Regulatory Structure of Labour Migration to Poland

In recent years, Poland has become one of the principal labour markets for third-country nationals within the European Union. According to available data, foreign nationals accounted for as much as 6.8% of total employment in the Polish labour market in 2024 (GUS 2024). A steady increase has also been observed in the number of documents legalising the employment of foreigners, including work permits and employer declarations on the assignment of work (MRPiPS 2014–2024). In addition, a substantial number of foreign nationals have made use of the simplified employment procedures introduced in response to the escalation of the war in Ukraine in 2022, which significantly facilitated access to the Polish labour market (Adamski and Florczak 2024).

A significant factor shaping the structure of labour migration to Poland consists of both the current and historically embedded assumptions of national migration policy, which for a long time did not take the form of a coherent and comprehensive strategic document. Prior to 2024, the objectives of migration policy were reconstructed primarily on the basis of fragmented labour market regulations, in particular the Act on Employment Promotion and Labour Market Institutions and its implementing measures. This led to a situation in which labour law instruments de facto functioned as the core tools of migration policy (Florczak 2022a). While this model facilitated regulatory flexibility and rapid responses to

labour market needs, it simultaneously entrenched a fragmented and reactive approach to the governance of labour migration.

Against this background, the government document of 15 October 2024 entitled "Regaining Control. Ensuring Security. A Comprehensive and Responsible Migration Strategy of Poland for 2025–2030" represents an ex post attempt to systematise and coordinate previously existing solutions (Florczak 2025b). At the level of declared policy objectives, the strategy emphasises a departure from treating labour immigration as a primary instrument for counteracting the adverse effects of demographic change. However, this narrative shift does not automatically translate into an observable reduction in labour migration flows, which continue to be shaped by sectoral demand and employer recruitment practices. Instead, the strategy prioritises the labour market activation of disadvantaged groups, the extension of working lives, and the modernisation and automation of the economy. This policy orientation fits into a longer-term narrative that assigns migration a complementary, rather than central, role in addressing labour shortages (Florczak 2025b). At the same time, the strategy does not exclude the continued admission of foreign nationals to the Polish labour market, but rather conditions such access on the existence of genuine and persistent labour shortages, particularly in shortage and long-term shortage occupations (Florczak 2025b). This approach continues a concept previously developed in both doctrine and practice, according to which the employment of migrants should complement, rather than substitute, domestic labour resources (Florczak 2019, 2022a).

Further changes in the regulation of labour migration became visible through legislative reforms that entered into force in 2025, which modified the mechanisms governing access of foreign nationals to the labour market. In particular, the abolition of the mandatory labour market test and the expansion of statutory delegations in favour of public authorities shifted control mechanisms from automatic solutions towards discretionary instruments (Florczak 2022a, 2025a). Although formally this enhances the state's capacity to respond flexibly to changing economic needs, in practice it may lead to increased administrative discretion and a weakening of legal certainty for both employers and migrant workers.

As a result, the Polish model of labour migration is characterised by crisis-driven regulatory flexibility combined with selective admission practices. While the state declares its willingness to address labour shortages through the employment of foreign nationals, it simultaneously strengthens control instruments and emphasises the primacy of security and the protection of the domestic labour market. This regulatory configuration constitutes an important backdrop for the subsequent comparative analysis with the Hungarian case, in which similar tensions between economic imperatives and political narratives take a more centralised and politically condensed form.

3.4.3. Governing Labour Migration Through Labour Market Law: From Functional Flexibility to Partial Recentralisation

Within the Polish model of labour migration governance, labour market instruments have played, and continue to play, a central role in the practical functioning of the system, particularly simplified regulatory mechanisms. The most significant of these has been, and remains, the employer declaration procedure, which enables rapid and large-scale access to the labour market for a limited group of foreign nationals without the need to obtain a standard work permit. This instrument is widely perceived as a pragmatic response to labour shortages and as a regulatory tool ensuring a high degree of flexibility in the context of dynamic economic change.

At the same time, the mass use of the declaration procedure has revealed its structural consequences. As noted in the literature, the dominance of temporary residence bases and fixed-term titles legalising work has led to the entrenchment of the temporary nature of foreign employment, irrespective of the type of work performed or the actual needs of em-

ployers (Florczak 2018). Employment of migrant workers based on employer declarations is predominantly temporary in nature, a result not only of the preferences of the parties to the employment relationship but, above all, of the legal construction of this model of work authorisation in Poland (Florczak 2018). This framework facilitates the implementation of the concept of complementarity in the employment of foreign nationals, whereby migrant labour supplements labour shortages, particularly in sectors characterised by low attractiveness for domestic workers, without producing a substitution effect vis-à-vis the national workforce (Florczak 2018, 2019).

The development of the declaration procedure has been gradual and evolutionary, and its current form reflects a series of successive, often targeted regulatory interventions. Initially, this mechanism was introduced as a solution with a limited personal and temporal scope, addressed to nationals of countries bordering the Republic of Poland. Pursuant to regulations of the Minister of Labour and Social Policy adopted between 2006 and 2008, foreign nationals were allowed to work without a work permit for a period not exceeding six months within any subsequent twelve-month period, provided that an employer declaration of intent to entrust work was registered with a local labour office (Florczak 2018). In subsequent years, the procedure was progressively extended to nationals of countries cooperating with Poland within the framework of mobility partnerships and, from 2010 onwards, to nationals of Belarus, Georgia, Moldova, the Russian Federation, and Ukraine, and from 2011 also to nationals of Armenia (Florczak 2018). From the outset, employment based on a registered declaration was therefore short-term in nature and strictly time-limited. At the same time, empirical data demonstrate a dynamic increase in the use of the declaration procedure already in its early years: between 2007 and 2009, the number of registered declarations rose from fewer than 22,000 to nearly 190,000, with an upward trend continuing in subsequent years (Florczak 2018). By way of illustration, in 2021, prior to the introduction of additional labour market access measures triggered by the war in Ukraine, 1,979,886 declarations were registered (MRPiPS 2021). While initially the procedure permitted employment for six months within a twelve-month period, it ultimately evolved to permit employment for up to twenty-four months without a mandatory cooling-off period. This evolution confirms that the declaration procedure was designed from the outset as a flexible and experimental instrument closely linked to current labour market needs, rather than as an element of a long-term, stable migration policy.

The mass nature of simplified procedures, combined with a limited scope of ex ante control, has also generated systemic risks. In particular, the number of documents legalising employment has not corresponded directly to the number of foreign nationals actually undertaking work in Poland. This has hindered assessments of the real scale of foreign labour market participation and contributed to labour market segmentation (Florczak 2018, 2022a). In this sense, the declaration procedure has functioned as a form of preliminary filter, allowing employers to test a worker during a trial-like period, after which, though not invariably, a transition to more stable forms of work authorisation, such as a standard work permit, would occur (Florczak 2018).

In contrast to Hungary, Poland long avoided the explicit use of quantitative regulatory instruments such as rigid employment quotas or centrally determined ceilings for the admission of third-country workers. Regulation remained reactive and demand-driven, with administrative decisions largely dependent on current labour market needs. While this model facilitated the rapid absorption of foreign labour, it simultaneously reinforced an instrumental and temporary perception of labour migration as a phenomenon subordinated to short-term economic objectives.

Growing administrative pressures, the increasing scale of foreign employment, and rising political salience of migration issues led in the latter half of the second decade of

the twenty-first century to a gradual shift in the state's approach to labour migration governance. This process reached its normative culmination in 2025, when the Act on Employment Promotion and Labour Market Institutions was replaced by the Act on the Conditions Governing the Permissibility of Entrusting Work to Foreign Nationals in the Territory of the Republic of Poland. This legislative change entailed a shift in normative emphasis from the logic of employment promotion towards the logic of controlling access to the labour market, as well as partial recentralisation of competences in this area (Florczak 2025b). Empirical effects of this recentralisation remain to be observed, as the reform entered into force in 2025.

The new regulation does not, however, constitute a rupture with the previous model, but rather its recalibration. Despite the strengthening of supervisory instruments and the increased significance of administrative discretion, access of foreign nationals to the labour market remains closely linked to current economic needs and to the legal construction of temporary residence and work authorisation bases. As a result, the Polish model of labour migration governance continues to operate at the intersection of flexibility and control, retaining its core features of functional openness, albeit in a more formalised and institutionally secured form (Florczak 2022a, 2025b).

3.4.4. Ad Hoc and Selective Labour Migration Governance Under Crisis Conditions: COVID-19, the War in Ukraine, and Visas as the Real Access Filter

One of the most characteristic features of the Polish model of labour migration governance is its recurring reliance on ad hoc regulatory interventions. Temporary legal interventions, initially justified by exceptional circumstances, have over time increasingly become a recurring feature of migration governance. As a result, access of foreign nationals to the labour market is shaped not by a coherent and unified migration policy, but by a sequence of crisis-driven responses. The labour market law, residence law, and visa law operate in parallel yet without coordination (Florczak 2022a, 2025b).

The first clear precedent for this model was the COVID-19 pandemic, which functioned as a specific "litmus test" of the situation of third-country economic migrants in the Polish labour market. As analyses conducted during the pandemic demonstrate, the state deliberately shifted the regulatory focus away from the formal legality of residence and employment status towards ensuring the continuity of work and maintaining the functioning of key sectors of the economy (Florczak 2020). Measures were introduced involving the automatic extension of the legality of residence and work, tolerance of interruptions in legal status, and the acceptance of work being performed despite the expiry of existing legalisation titles. During this period, formal legality was subordinated to the functional need to maintain labour supply, particularly in sectors considered strategic, such as agriculture, processing industries, and transport (Florczak 2020, 2022a). A particularly striking example of this logic was the permission granted for foreign nationals subject to mandatory quarantine to continue working, which constituted a departure from fundamental principles of public health protection (Florczak 2020).

This ad hoc logic was subsequently reinforced and normalised after 24 February 2022, following the escalation of the war in Ukraine. The regulations adopted at that time granted Ukrainian nationals almost immediate access to the Polish labour market. This was based on notification mechanisms rather than classic administrative control, and applied to all Ukrainian nationals legally residing in Poland—not only those whose presence was directly linked to war-induced displacement (Florczak 2022b). Although unprecedented in scale, these solutions were consistent with the crisis-response pattern already established during the pandemic period (Florczak 2025b; Flaszyńska 2024).

At the same time, however, this extreme opening of the labour market for one group of foreign nationals was accompanied by selective tightening of access for others. A symbolic

yet systemically significant example was the removal of citizens of the Russian Federation from the declaration-based employment procedure. Although formally justified by security considerations, this decision in practice resulted in the immediate closure of one pathway to the labour market, without any transitional arrangements. This illustrates that state security has come to function as an autonomous criterion for access to employment, and that the employment of foreign nationals has become an instrument of foreign and security policy (Florczak 2025b).

This selectivity becomes particularly visible in the sphere of visa law, which in practice operates as the real "gatekeeper" of labour migration. The Colombian case illustrates how migration governance may function through regulatory shock. Faced with labour shortages and growing barriers in traditional source countries, Polish employers turned to visa-free regimes as a decisive recruitment factor. As a result, Colombia emerged as a new labour source not through strategic migration planning, but through employer-driven searches for legally accessible workers. The scale of this shift is reflected in the sharp increase in type A work permits issued to Colombian nationals—from 4129 in 2022 to 37,987 in 2024 (MRPiPS 2022–2024).

The sudden introduction of a visa requirement in August 2024, without a transitional period, abruptly disrupted this migration channel. Despite no changes in labour law governing employment access, the visa decision effectively halted established recruitment practices (Flaszyńska 2024), demonstrating that visa policy may function as a more powerful regulatory instrument than labour market law itself.

A similar mechanism is revealed by research concerning Nepalese nationals. A comparative analysis of work permits issued (Ministry of Family and Social Policy data) and recorded entries into Poland (Border Guard statistics) indicates a profound discrepancy between formal labour legalisation and real migration. In years considered to reflect increased inflows of Nepalese workers (2018–2019), the actual number of entries was several times lower than the number of permits issued, confirming the functioning of the visa as a bottleneck of the system (Florczak 2024). This practice did not result from changes in labour law, but from selective and opaque visa policy.

As a result, the Polish model of labour migration must be understood as a system of selective openness managed in a crisis-driven mode. The state does not pursue a single, coherent migration policy, but rather operates a repertoire of ad hoc responses, in which it is not labour law but visa law and administrative practices that serve as the key filters governing access to the labour market.

The Polish experience therefore represents a distinct governance configuration within the broader regional context. In contrast to the Hungarian model, labour migration regulation in Poland has historically developed through flexible labour market instruments, simplified procedures, and employer-driven recruitment mechanisms, with less reliance on formal quotas or centrally determined ceilings. At the same time, recent reforms and crisis-driven interventions suggest a gradual shift toward stronger state control and partial recentralisation. The comparison between Poland and Hungary thus reveals two different regulatory pathways through which post-socialist states respond to similar structural pressures, including labour shortages, demographic decline, and continued outward mobility. Examining these differences provides a basis for understanding how labour migration governance in Central and Eastern Europe may evolve under competing pressures of economic demand, political narratives, and institutional legacies.

4. Discussion: Comparative Analysis (Poland vs. Hungary)

The comparative analysis of Poland and Hungary makes it possible to capture a specific, yet increasingly widespread model of labour migration governance in Central

and Eastern Europe. Despite significant differences in political narratives, institutional architectures, and regulatory techniques, both states display a clear convergence at the functional level. Labour migration is simultaneously framed as a phenomenon requiring control and security, while in practice it is employed as a tool to mitigate structural labour shortages. This tension between narrative and regulatory practice constitutes a key finding of the study and situates both cases within a broader paradigm of selective and instrumental migration governance (Florczak 2022a; Bradford and Cullen 2025).

The first major comparative conclusion concerns the persistence of the so-called policy–rhetoric gap. In both Poland and Hungary, official public discourse emphasises migration control, the temporariness of migrant employment, and the protection of the domestic labour market. In Hungary, this narrative takes on a distinctly securitised and confrontational form, reinforced by centralised decision-making, quantitative limits, and the strong politicisation of migration. In Poland, the rhetoric is more technocratic and less antagonistic; however, as the analysis demonstrates, these differences are primarily communicative in nature. In practice, both states have developed regulatory solutions enabling broad access of foreign nationals to their labour markets, while simultaneously preserving mechanisms of selectivity and reversibility (Florczak 2025b; Lados and Brucker 2023).

This leads to the conclusion that contemporary labour migration governance in both countries is driven more by functional imperatives than by a coherent political vision. Labour shortages, adverse demographic trends, and pressures related to economic competitiveness significantly constrain the scope for genuinely restrictive migration policies. As a result, migration law and labour market law increasingly cease to serve exclusively protective functions and instead operate as instruments for managing labour supply. Migration is therefore regulated not as a social phenomenon with long-term societal implications, but rather as an economic variable responding to immediate market needs (Florczak 2019; OECD 2025).

A second important outcome of the comparison lies in identifying different institutional pathways leading to convergent effects. Hungary has developed a highly centralised and securitised governance model based on quotas, guest worker programmes, and the formal prioritisation of domestic and EU workers. Poland, in contrast, for a long time developed a decentralised and procedurally flexible model, relying on simplified labour market access instruments and broad administrative discretion. Despite these differences, both systems generate similar outcomes: large-scale yet temporary employment of foreign nationals, limited pathways to residence stabilisation, and the structural dependence of selected economic sectors on migrant labour. While convergence is visible at the level of functional logic—particularly in the expansion of temporary, sector-based labour schemes and the preference for controlled, non-settlement migration—institutional design differs significantly between the two states. Hungary has developed a highly centralised and securitised governance model, relying on quotas, nationality-based admission lists, and strong executive control over migration flows. Poland, in contrast, historically relied on decentralised and procedurally flexible mechanisms, notably the employer declaration system, although recent reforms (especially post-2022 and the 2025 legislative changes) indicate partial recentralisation and strengthened supervisory powers.

Evidence of convergence is most visible in the parallel development of restrictive asylum approaches combined with expanded labour migration channels. In Hungary, post-2015 securitisation of asylum coincided with the gradual institutionalisation of guest worker schemes. In Poland, restrictive visa practices and increased control instruments have coexisted with large-scale facilitation of temporary labour migration, particularly after 2022. This suggests not institutional uniformity, but convergence in strategic orientation: migration governance increasingly prioritises economically instrumental, temporary labour

mobility while maintaining politically communicable control narratives. This demonstrates that convergence in outcomes does not require convergence in regulatory forms.

This finding challenges linear assumptions about the harmonisation of migration policies within the European Union. Member States may achieve similar functional equilibria through distinct regulatory logics rooted in local administrative traditions and political contexts. In this sense, Poland and Hungary represent two variants of a selective openness model of migration governance, in which labour market access is functionally necessary but normatively constrained, sector-specific, temporary, and largely detached from durable integration prospects (Florczak 2022a; Futák-Campbell 2022).

The implications of this model extend beyond regulatory design and political discourse. Temporary admission channels, employment-dependent residence statuses, and limited pathways to status stabilisation are widely associated in the literature with heightened vulnerability and segmented labour market incorporation (Novitz and Andrijasevic 2020; Meszmann and Fedyuk 2019). In both Poland and Hungary, migrant workers are concentrated in sectors characterised by lower wages, higher turnover, and limited collective representation, while their legal security remains closely tied to continued employment. This conditionality increases exposure to labour market fluctuations and administrative discretion.

Moreover, the limited emphasis on long-term integration and settlement prospects suggests that migration is treated primarily as a short-term economic adjustment mechanism rather than a component of broader social policy. As comparative research indicates, such regulatory configurations may reinforce differentiated inclusion and uneven access to social protection within national labour markets (OECD 2025; Arendas et al. 2023). While the present study does not provide primary empirical evidence on migrant outcomes, the governance patterns identified here are consistent with mechanisms of structural precarity described in socio-legal scholarship.

A third, particularly significant element of the comparative analysis concerns the role of crisis governance. In Poland, the COVID-19 pandemic and the war in Ukraine revealed that emergency regulations are not merely incidental but are becoming a permanent component of the system. Automatic extensions of residence and work legality, tolerance of legal-status discontinuities, and the replacement of ex ante controls with notification mechanisms were initially justified by the exceptional nature of the situation. In practice, however, they contributed to a lasting shift in regulatory priorities toward flexibility and pragmatism (Florczak 2020, 2025b). In Hungary, crisis logic assumes a different form, more closely linked to security considerations and extraordinary restrictions, yet its function is analogous: enabling rapid regulatory adjustment to current economic needs while maintaining a political narrative of control.

The analysis thus demonstrates that a crisis is not an exception to the rule but rather a mechanism for normalising regulatory change. Crisis-based justifications allow states to introduce solutions that would otherwise be politically difficult to legitimise. In this sense, labour migration governance in both countries is reactive and fragmented, raising concerns regarding systemic coherence and the long-term implications for the legal security of migrant workers (Flaszyńska 2024; Florczak 2022a).

A fourth conclusion, offering distinct analytical added value, points to the growing importance of instruments external to labour law, particularly visa law. The cases of Colombia and Nepal in Poland illustrate that, in many instances, the real migration filter is not labour market regulation but visa decisions, often taken outside transparent procedures and without coordination with employment policy. In Hungary, a comparable role is played by eligibility country lists and bilateral agreements. In both cases, access to work is determined by instruments formally external to labour law, resulting in a fragmentation of regulatory responsibility (Florczak 2024).

From a theoretical perspective, the findings refine the concept of the migration state by demonstrating that, in post-socialist contexts, migration governance stabilises around selective openness rather than liberal incorporation. Poland and Hungary are neither classic immigration states nor merely emigration countries; instead, they represent a variant of the migration state in which labour incorporation is functionally necessary but normatively constrained, temporary, and politically securitised.

In this configuration, hybridity is not a transitional phase but a structurally embedded feature of governance. Openness and restriction coexist as durable elements of the system: migration is tolerated insofar as it remains economically instrumental and politically manageable, while long-term integration and settlement remain peripheral to state priorities (Bradford and Cullen 2025; Florczak 2025b).

From a broader regional perspective, the analysis suggests that the selective openness model may become the dominant pattern in Central and Eastern Europe. States facing similar demographic and political challenges are likely to seek a balance between labour market needs and anti-immigration pressures. The comparison of Poland and Hungary therefore contributes not only to understanding two national cases but also to identifying the broader trajectory of labour migration governance in the region.

5. Conclusions

This article set out to examine whether labour migration governance in Poland and Hungary is undergoing a structural transformation in the context of demographic decline, labour shortages, and intensified politicisation of migration. The comparative analysis demonstrates that both countries exhibit a persistent tension between restrictive political rhetoric and expanding labour market access for third-country nationals.

However, the central contribution of this study lies not merely in identifying this tension, but in conceptualising it. The findings suggest that Poland and Hungary should be understood as variants of a selective openness model of migration governance: regimes that combine politically communicable narratives of control with functionally necessary labour market incorporation. In these systems, migration is not embraced as a long-term societal project but managed as an economic instrument—temporary, reversible, and sector-specific.

This refines the migration state concept in two respects. First, it demonstrates that in post-socialist contexts, the migration state does not necessarily emerge through liberalisation or rights expansion, but through the instrumentalisation of labour migration under conditions of demographic pressure. Second, it shows that hybridisation is not transitional but structurally embedded: openness and restriction coexist as stable components of governance rather than successive phases. The comparison further reveals that convergence in outcomes does not require convergence in institutional design. Hungary's centralised quota-based system and Poland's decentralised, crisis-driven flexibility produce analogous functional equilibria: large-scale but temporary labour immigration combined with limited pathways to stabilisation.

These findings contribute to migration governance theory by illustrating how states on the European semi-periphery reconcile economic dependence on migrant labour with politically salient anti-immigration discourses. The selective openness model identified here points to a possible broader trajectory observable in parts of Central and Eastern Europe, where labour migration becomes structurally necessary yet remains normatively constrained.

Future research should further explore the long-term implications of this model for labour market segmentation, migrant precarity, and regional economic sustainability.

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